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Human Rights, Environment, and Development: The Dispossession of Fishing Communities on Lake Malawi

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In a growing number of cases throughout Africa, communities' resource bases are being undermined or appropriated by outsiders, a process which seriously threatens the continuation of local cultures and livelihoods. In this article, we use a political ecology framework to examine how the linked processes of economic development, political power, and environmental change are transgressing the rights of fishing communities on the shores of Lake Malawi. In the cases described, these communities, or community members within them, find themselves powerless to prevent the expropriation of the resources over which they previously had either legal or customary control. Thus, it is not the economic processes of dispossession alone which lead to human rights violations but rather dispossession combined with an authoritarian political context.

KEY WORDS: Africa; Lake Malawi; political ecology; human rights.

INTRODUCTION

Broad processes of socioeconomic change and "development" are shattering and reconstituting many African rural communities. These processes are significantly transforming the environmental bases on which these communities depend, and often result in impoverishment and increased socioeconomic differentiation within and outside them. In this article, we consider some of the sociocultural and environmental ramifications of the burgeoning tourist industry and other economic development strategies along the shores of Lake Malawi in southern Africa.

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We examine the impact of these development strategies on the broad constellation of rights to social, economic, political, and environmental resources essential to lakeshore communities' well-being and, ultimately, their survival. Although less well recognized than individual human rights, these community-based rights to resources are of great importance to rural communities. In a growing number of cases throughout Africa, these communities' resource bases are being undermined or appropriated by others, a process which seriously threatens the continuation of local cultures and livelihoods.

Although what we describe is similar to what is happening to many indigenous peoples around the world, our focus is on African rural populations which are not generally regarded and, in many instances, do not regard themselves as "indigenous." While the construction of plantations, dams, or large mines which destroy indigenous peoples' basis for survival are labeled "genocide" or "ecocide," such events go unnamed and frequently escape notice in the context of rural populations.

In this article, we use a political ecology framework to examine how the linked processes of economic development, political power, and environmental change are transgressing the rights of fishing communities on the shores of Lake Malawi. The information presented here is drawn from research we conducted on 19 fishing communities along the shores of Lake Malawi, interviews with fishers, processors, traders, Fisheries Department officials and donor organizations.[2]

The article is divided into three parts. In Part I, we describe the political ecology framework employed in our analysis, and we explain how the term "human rights" is used. In the second part, we briefly describe Malawi's political economy. In the third section, we examine the interactions between these broad political and economic structures and local ones in fishing communities along the shores of Lake Malawi. We conclude the section by considering some of the environmental ramifications of these interactions.

PART I. POLITICAL ECOLOGY

Political ecology combines "the concerns of ecology and a broadly defined political economy" (Blaikie and Brookfield, 1987, p. 17). It provides a framework for examining how local patterns of resource management have been incorporated into national and global economies

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over time. The perspective draws attention to political and economic interventions in rural economies, to the differential local responses to these interventions and to the resulting ecological changes. The framework is interactive, according weight to both national and global changes and to local ones. Specifically, political ecology: (1) examines how macro-level socioeconomic and political changes interact with local-level structures and processes, (2) appraises what the effects of these interactions are on peoples' physical resource bases and their well-being, and (3) considers, in turn, the social repercussions of a modified physical environment at the local, national, and international levels. In this study, we consider cases where these transformations are resulting in loss of community rights.

The political ecology approach draws attention to the states' role in environmental and social transformations through its support of particular economic development strategies and through the mechanisms by which it exercises power. The state's attempt to incorporate indigenous and ethnic groups more fully in its domain and to extend its jurisdiction over the rich natural resources previously controlled by many of these populations are signal events of the twentieth century. These efforts are central to understanding contemporary Africa. In many cases, state incorporation has resulted in local groups' loss of their legal rights to control and use their environment.

Such processes have been well-documented with regard to "indigenous peoples." In these contexts, they are clearly recognized as violations of human rights because they have resulted in the total or near-total extermination of the cultures involved. Among many African rural populations, however, these processes have usually not resulted in the total elimination of the community — although, as we shall see, this does occur — but rather in the undermining of the livelihood of many of its members. We suggest these processes constitute infringements of human rights when no means of legitimate recourse exist for those affected. In sum, these communities, or community members within them, find themselves powerless to prevent the expropriation of the resources over which they previously had either legal or customary control. Thus, it is not the economic processes of dispossession alone which lead to human rights violations but rather dispossession combined with an authoritarian political context.

PART II. MALAWI: POLITICAL AND ECONOMIC OVERVIEW

Malawi is a small, land-locked country located in southern Africa, bordered by Tanzania, Mozambique, and Zambia. The World Bank Development Report of 1991 indicates that it remains one of the poorest countries in Africa. The country has a per capita income of approximately $180 per year and an infant mortality rate of 147 per 1000 live births. At approximately 74 people per square kilometer, Malawi is one of the most densely populated countries in Africa, and the population is growing at the rate of 3.6% per year.[3]

Nearly 78% of Malawi's 8.2 million people earn their living from agriculture, a sector that has been severely affected in recent years by drought, high costs of agricultural inputs, low prices for export crops, and the presence of over one million refugees from neighboring Mozambique (United Nations, 1990). The inequitable distribution of land, access to credit and other resources, restrictions on peasant tobacco production, soil erosion, deforestation, and other forms of environmental degradation force many people to search for off-farm and, frequently, out-of-the country employment.

Malawi is a former British colony which gained independence in 1964. It has been ruled as a single party state under the leadership of the Malawi Congress Party. The head of the Party and the Life President is a former physician, Dr. Hastings Kamuzu Banda. Unlike many one-party states in Africa which have been left-leaning or explicitly socialist, Malawi has pursued capitalist-oriented development strategies.

Although the World Bank and other donors have characterized Malawi as a free-market, non-interventionist, capitalist economy, a recent analysis of the impact of the three Structural Adjustment Loan Programs (SALs) orchestrated by the World Bank and the International Monetary Fund suggests that the "free market" characterization is imprecise (Harrigan, 1991, p. 204). Harrigan (1991, p. 207) calls attention to the complex relationships among the corporate, financial, and parastatal sectors of the economy which result, not in a model free-market economy, "but an economy which is so mixed that it is often difficult to distinguish the public and private sectors." At the center of this complex web lies Press Holding Company, the President's private corporation, which until recently owned major shares of the large, state-owned companies, Agricultural Development and Marketing Corporation (ADMARC), and the Malawi Development Corporation, and also held major interests in the country's two commercial banks.

Although Malawi gained a reputation for political stability, it is also recognized as one of the most repressive states in Africa. This repression has been achieved through a political philosophy characterized as "patrimonial populism" whereby the legislature, judiciary, and Malawi Congress Party have all been subordinated to the arms of the executive (Harrigan, 1991, p. 207). As Vail and White (1991, p. 291) indicate, Banda has created a political system in which he occupies the pinnacle of two rival systems of authority — the State and the Malawi Congress Party. As Life President of the State and head of

[3]Although it is likely that as a result of the AIDS epidemic, which has struck Malawi severely, these figures will be revised downward.

the Party, he has successfully played one set of officials against the other as circumstances have demanded. He has also effectively incorporated the traditional authorities (chiefs and headmen) into his regime.[4]

The consequences of these oppressive but effective strategies of political and economic rule were described in the 1990 Africa Watch Report, "Where Silence Rules. The Suppression of Dissent in Malawi." The first sentence of this report reads: "Malawi is proof that repression can work" (Africa Watch Report, 1990, p. 1).

Recently, however, the system has come under severe challenge, and has collapsed. Due to Banda's refusal to comply with certain provisions of the SAL agreements and because of the failure of the SAL instruments themselves to bring about significant improvements in Malawi's economy, international aid organizations turned their attention to the authoritarian political structure itself.[5] The major donors — the World Bank, Overseas Development Authority (ODA), European Community (EC), United States Agency for International Development (USAID), and others — linked continued development assistance to the government's willingness to improve its human rights record by instituting multiparty democracy and releasing political prisoners. Unable to finance the economy without international aid, Banda agreed to hold a referendum on multipartyism, and he released many of the prisoners. The referendum took place on June 14, 1993 when the people voted to end one party rule. Almost 1 year later, on May 17, 1994, a general election was held. Seven parties contested for the 177 parliamentary seats. The United Democratic Party under Mr. Elson Muluzi won the election.

Lake Malawi in the National Economy

Approximately 22% of Malawi is covered by lakes and rivers. Lake Malawi, the largest water body, is world famous for its fish species diversity and its great scenic beauty. This lake contains an as yet unknown number of species, the most important family of which is the *Cichlidae*, in addition to fish from a number of other families (Lowe-McConnell, 1976).[6] *Tilapia*,

[4]For example, Vail and White (1991, p. 291) describe a special conference held in Kasungu in 1974 where the role of these authorities was elucidated: "Under colonial and federal administration, the chiefs had sold out, becoming little more than messengers for the oppressors. President Banda, however, had restored chiefs to their rightful status and they owed everything to him. No chief had anything to fear as long as they cooperated with the party."

[5]Harrigan (1991) suggests that Banda refused to comply with the SALs because they interfered with his own longer-term economic interests.

[6]Lake Malawi is a major source of aquarium fish for the tropical fish industry. The most important markets for these fish are in Europe and Asia, as fish breeders in Florida now supply most of the North American market with Malawian cichlids.

a cichlid genus, is widely used in aquaculture throughout the world. The lake also is the source of many of the *Cichlidae* species prized in the international fresh water aquarium trade.

Tourism

International tourist development on Lake Malawi occupies an important place in national development plans. One of the primary attractions is Lake Malawi National Park which was established by the Government of Malawi (GOM) in 1980 as the first freshwater, underwater park in the world. It was created for the protection and study of the great wealth of fish species found in the lake. In 1984, recognizing the Park's great ecological significance, UNESCO designated it as a World Heritage Site.[7]

The Park is located in the southern end of Lake Malawi on the Cape Maclear peninsula. In addition to the peninsula, it includes 13 associated islands. Surrounding this terrestrial area is a 100-meter border designated as the underwater component of the Park.

The *Statement of Development Policies 1987–1996* (Republic of Malawi, n.d.) identifies the lakeshore as the most promising site for tourist expansion. Five "market segments" are targeted for this development:

- the middle-aged European and North American attracted to Malawi as either one element in a multicentre African tour or for a two week grand tour of Malawi;
- expatriate Europeans and their families working in neighboring countries;
- people from the subregion interested in a tranquil lakeside holiday;
- certain "special interest" markets, particularly relating to flora and fauna; and
- the domestic middle-class market looking for short-break holidays (n.d., p. 83).

By international standards, the lakeshore is only lightly developed. The Malawi Government has consequently sought to increase the number of hotels and cottages there. *The Malawi Tourism Development Plans* of 1974 and 1984 recommended that the new hotels be large-scale enterprises concentrated in six prime sites along the lakeshore.[8] Plans call for increasing the number of international quality hotel rooms by 600%.

[7] *Africa on a Shoestring* (1986) later immortalized the Park by stating that, if you had to visit Malawi on your trip, the place to stay was Stevens Resort in the Park. Because of its negative reference to the country, the book was immediately banned in Malawi.

[8] These include Chilumba, Chinteche, North Senga Bay, Cape Maclear, and areas adjacent to Nkopola Lodge and Club Makokola.

Other government documents, however, point out some of the tensions inherent in these plans. For example, *The Lakeshore Physical Development Plan* (1987) noted emerging conflicts between cottage and fishing communities over access to beaches. Already in 1987, this Plan's authors estimated that approximately 25 km of the lakeshore between Senga Bay and Chipoka and between Cape Maclear and Mangochi were taken up by cottages. They recommended that subsequent cottage development be directed to the less densely populated northern portions of the lakeshore — a recommendation which, as we will describe, has not been followed. This Plan also called for environmental impact assessments to be undertaken for most development activities and for little or no industrial development to occur along the lakeshore.

In addition to ignoring the potential for conflicts of interests between tourist development and fishing communities, *The Malawi Tourism Plan* of 1984 makes no reference to the possibilities of smaller-scale hotel and motel development carried out by indigenous capital. This type of development is already widespread along the lakeshore and also poses dilemmas for fishing communities.

Fisheries

The fisheries is of importance to the economy in two respects. First, fish provide nearly 75% of the animal protein consumed, and, therefore, are an essential component of the diet. Second, it is a significant source of off-farm employment, directly providing jobs for some 32,000 fishers, and another 200,000 people in fish processing and trading activities.[9]

The World Bank and the Food and Agriculture Organization of the United Nations recognize three categories of fishers on Lake Malawi: artisanal, semi-commercial, and commercial. The "artisanal" or "traditional" sector is composed of small-scale fishers who rely principally on non-motorized canoes and plank boats. These fishers harvest 85–90% of the fish and compose over 99% of the workforce. The semi-commercial sector comprises 16 pair-trawl operators who are assigned designated fishing territories. The commercial sector is solely made up of the Malawi Development Corporation (Maldeco) which is owned by Press Food Ltd., whose major stockholder is Banda. Together the semi-commercial and commercial sectors account for 10–15% of the total catch from Lake

[9]These figures may well underestimate the number of people working in the fishing sector. WB/FAO project planning documents report that the number of part-time fishers grew by roughly one-third between 1983-88. Presumably, the number of processors and traders has also increased.

Malawi.[10] Most development assistance is currently being allocated to the commercial and semi-commercial sectors, although they constitute only a tiny proportion of the fishers.

In the course of our study of fishing communities, we discovered a number of examples of how plans for tourist and other forms of economic development adversely affected the rights of fishing communities and altered the environment on which they depended. Using the political ecology framework described above, three cases will briefly be reviewed: (1) Mdulumanja, a fishing community which was demolished in 1991 to make room for the expansion of a resort hotel, (2) Chembe and other enclave villages in Lake Malawi National Park which currently are threatened by similar developments, and (3) Chinteche where fishing communities were dispossessed of their homes and beaches to make way for a paper mill. These case studies are not presented because they are exceptional but rather because they are examples of the wider process of "development" occurring along much of the lakeshore.

PART III: CASE STUDIES OF LAKESHORE COMMUNITIES

Mdulumanja

In September 1991, the Africa News of the BBC broadcast a report which described the forced removal of the Mdulumanja fishing community, located along the shores of Lake Malawi, to make way for the expansion of a luxury hotel. Over 70 families lost their homes and businesses. No efforts were made to relocate the village. Instead, each family received less than $20 compensation.

Mdulumanja was one of the 19 communities included in our survey of fishing villages. In 1990, two research assistants spent nearly 1 month carrying out surveys of boat owners and crew members and writing a report on the village's history and social organization. In 1991, they returned for 2 weeks to study the process of eviction of the villagers.

The removal of Mdulumanja is part of the larger process underway along Lake Malawi by which fishing villages are losing access to beaches as a result of cottage and hotel development. Mdulumanja was situated approximately 20 km from Salima, one of the largest towns on the lakeshore. A well-paved road is now under construction which will link Salima

[10]Ferguson, Derman, and Mkandawire (1993) provide a critique of these categories and how they bias development assistance toward the large-scale operators.

to Lilongwe, the capital of Malawi. As a result of this new road, this area of the lakeshore has become a prime site for tourist development.

Mdulumanja was located on land allocated since Colonial times to the railroad. The area was originally used as a docking station for lake steamers making rail connections to other parts of the country. The site was also used as a labor recruiting station by the Mthandizi Company for the mines of South Africa and Southern Rhodesia. In addition, the Grand Beach Hotel was located nearby. Mdulumanja grew up around these businesses, serving as a source of fresh fish and providing services such as grocery stores, rest houses, and restaurants for the workers and the hotel. Although the railway no longer uses the site, it has remained state-owned property.

When we conducted our research in the village during 1990 and 1991, there were approximately 70 resident households. Mdulumanja had a well-sheltered beach for fishing boats and canoes, and many traders from the cities purchased fish there. The community also had a number of stores, restaurants, and rest houses which catered to the needs of the fish traders and other visitors. A business which dug and sold sand for construction purposes was also located in the village.

Most of the residents were Chewa, but Yao and Tonga lived in the community as well. The village was under the jurisdiction of Chief Maganga, a Yao, who rarely visited the place. Because the village Headman had moved 4 km away to Senga Bay, the local Chairman of the Malawi Congress Party, a Tonga, had taken over many of his duties. In comparison to some of the other fishing villages we visited, Mdulumanja was an unusually peaceful place. It was tightly regulated by community members themselves, and no alcoholic beverages were permitted in the village.

In 1987, as part of the privatization initiative promoted by the World Bank and the IMF, the Grand Beach Hotel was purchased from the Malawi Development Corporation by a Dutch citizen. The new owner soon petitioned the Ministry of Industry and Tourism and Minister of State, John Tembo, to have the village removed to make way for the expansion of the hotel. In interviews with us, he contended that Mdulumanja was unsanitary, unsightly, and harbored thieves. In particular, he drew attention to the high levels of fecal contamination of the lake water. Although he blamed this situation on the lack of proper latrines in the village, health authorities who examined the area suggested that the hotel's own waste disposal system also contributed to the contamination. In addition, the hotel owner noted that many of the campers who stayed at his campsite ate their meals in the less expensive village restaurants and hired villagers as tour guides, practices which reduced his volume of business.

Relations between the hotel and the village, which had been amiable under the previous hotel administration, rapidly deteriorated. The hotel owner no longer permitted villagers to use his water taps, and refused to buy fish from the fishermen. In addition, he constructed a large fence surrounding his property to keep out all uninvited guests and to prevent movement between the hotel and the village.

Meanwhile, the hotel owner continued to lobby the Ministry of Industry and Tourism and, with the support and assistance of the Minister of State and Head of the Malawi Development Corporation, John Tembo, he gained permission to have the villagers evicted. The Fisheries Department, which had shown concern over cottage and hotel encroachment on fishing villages and beach access, sided with the villagers and opposed the move. The matter was then taken to the Office of the President and Cabinet where, in late 1990, a decision was reached in favor of the hotel owner.

In January 1991, Mdulumanja residents received a visit from the government and party officials. They were informed that the land was to be used for an expansion of the hotel and that they would have to move by March 15. Extremely angered, the community members, led by the local Chairman of the Malawi Congress Party, protested by throwing sand and rocks at the delegation and initially blocking it from leaving the village. Mdulumanja residents firmly believed that the hotel owner had bribed the District Commissioner and their Member of Parliament. Reflecting the success of Banda's populist strategy, they contended that the Life President could not possibly know of the plans to move the village because, if he did, he would certainly oppose them. Accordingly, the villagers, acting through the local Malawi Congress Party, appointed a ten member women's delegation to take the matter to Lilongwe. Although the delegation only got as far as the Party Headquarters, the members were assured that the issue would be carefully examined.

A second meeting took place in February between the villagers in Mdulumanja and the authorities. At this time, however, the local Malawi Congress Party officials who had originally opposed the move were not present. The villagers were told that the deadline for the move had been pushed back to April 30, that a team of appraisers would visit Mdulumanja to determine the amount of compensation residents would receive, and that those not present when the appraisers arrived would not be compensated.

The villagers were forced to move on schedule. It was reported that most received approximately $20 in compensation for their dwellings and businesses. The buildings were then bulldozed at the hotel owner's expense to assure that no one would return and the residents dispersed to find new homes on their own.

Access to customary land with beaches suited for boat landings in the Salima/Senga Bay area is difficult, if not impossible, to obtain. Almost all of the lake-front land has been appropriated for cottage and hotel development or is being used by the state-run military academy.[11] Some previous Mdulumanja residents have settled at the mouth of a stream on property owned by the Salima Fisheries Department boatyard, an unhealthy environment frequently flooded during the rainy season. Yet others moved to a small area behind Mdulumanja. There they have constructed temporary dwellings on the beach itself as the land behind the beach is owned by the Forestry Department. In both cases, people have again moved onto public land, and they face the possibilities of eviction.

At Mdulumanja, political and economic forces combined to destroy a community and undermine the livelihood of its members. The Mdulumanja case study illustrates how power holders — in this instance the Minister of State and the Office of the President and Cabinet — were able to impose their view concerning how a particular environment should be developed and used. Their image of the site, like that of the hotel owner, was of an international-class hotel offering its primarily White South African clientele a place in the sun without having to confront the realities of life in Malawi. This perspective overrode the legitimate interests and will of the village, the local Malawi Congress Party officials, and the Fisheries Department.

The forced removal of the Mdulumanja residents exemplifies the close intertwining of the Party, the Government, and the private sector in Malawi. For example, John Tembo who is simultaneously Minister of State, head of the Malawi Development Corporation and a leading member of the Malawi Congress Party, was a key actor in the village's removal. Village residents, pursuing their rights to remain at the site, could find no route to bypass this concentration of power.[12] A similar situation prevails in the enclave villages in Lake Malawi National Park — our second case study.

[11]Cottage development has become so widespread that the Paramount Chief of the area, Bibi Kuluunda, reported to us that she had decreased the size of the land she allocated to individual cottage owners in order to accommodate the large number of requests. In fact, when we interviewed her, she initially thought we were seeking land for a cottage ourselves. She reported that all the land had already been taken for cottages and hotel development in Lifuwu, a large fishing village just north of Mdulumanja.

[12]The Mdulumanja site was originally appropriated by the Colonial Government of Malawi from what had been recognized as customary land. The newly formed independent state of Malawi accepted this definition, and, on this basis, continued to recognize the property as belonging to the state. In the eyes of many of the local residents, however, this appropriation was no more legitimate than that of the previous Colonial administration.

The Enclave Villages of Lake Malawi National Park

When Lake Malawi National Park was established, there were five fishing communities located within its boundaries which were designated as enclave villages. In creating the Park, President Banda stipulated that these pre-existing villages would be allowed to remain at their present sites. Two of the communities, Msaka (Chimphamba) and Mvunguti, were included in our survey. We also visited a third village, Chembe, which adjoins the central tourist area and facilities in the Park.

Although most communities in this area of Malawi are composed principally of Chewa and Yao speakers, many residents of the enclave villages are Tonga and Tumbuka who have migrated from the north to fish in the fertile waters of the Southeastern and Southwestern arms of Lake Malawi. One village, Mvunguti, is composed entirely of such migrants. While many long-term Chewa and Yao residents have access to small agricultural plots, migrants from the north depend almost entirely on fishing and fish trading for their livelihood. Only in Chembe Village, located next to the Park facilities, are many residents involved in the tourist trade. Approximately 10,000 people currently live in the five enclave villages, almost half of them in Chembe Village itself.

Lake Malawi National Park draws the largest number of tourists and generates the most revenue of all the parks in Malawi. It is the home of one of the greatest collections of freshwater aquarium fish in the world. An estimated 10,000 people visit the park annually. For many years, authorities have recognized that the park's tourist facilities are in need of renovation. Although many proposals for renovation have been submitted to the Department of National Parks and Wildlife (DNPW), almost all of them have been turned down because they advocated large-scale development to maximize profits at the expense of the fragile ecosystem. In September 1991, the DNPW accepted assistance from the U.S.-based Worldwide Fund for Nature (WWF) to draw up a development and management plan which would not damage the ecosystem. The World Bank's Global Environmental Facility also agreed to commit funds for infrastructure improvements, including the construction of a small hotel at the site of the present tourist facilities and camping ground (Lake Malawi National Park Proposed Hotel Development, 1992).

At the same time, however, the Malawi Development Corporation, in cooperation with the Protea Hotel Group of South Africa, proposed a large-scale development plan for Cape Maclear. This plan calls for the construction of a three-story, 152-room hotel containing a casino, tennis courts, golf course, swimming pools, and conference facilities for at least 200 people. The total area required for the complex is estimated to be 30 hectares

(74 acres). The hotel will be located at the site of the present tourist facilities, National Park offices, and Chembe village. It would of necessity displace many residents of the village.

In May 1992, the head of the Malawi Development Corporation and the Minister of State, John Tembo, called for a meeting of the Ministers of the Malawi Government at Zomba where he announced that an agreement for the hotel development at Cape Maclear had been signed, and that construction was to begin in June or July. A series of meetings with Heads of Departments then took place to discuss the implementation of the plan. At these meetings, no objections to the proposal were permitted — only positive suggestions on implementation of the plan were tolerated.

Outside of the context of these meetings, however, the Departments of Fisheries, Forestry, National Parks and Wildlife, and Water have expressed serious reservations about the proposed development (LMNP Proposed Hotel Development, 1992). These include concerns that:

1. Increased pollution resulting from a large hotel and resident staff would place increased stress on the existing forests and agricultural lands in the Park.
2. The possibility that water pollution from hotel sewage effluent would seriously disturb the Park's aquatic habitats.
3. The size of the development scheme would result in increased soil erosion on the surrounding steep-sloping hills and thus increase siltation into the lake.
4. The likelihood that the size of the complex would be aesthetically displeasing since it would dwarf the surrounding natural habitat.
5. Noise pollution from the hotel disco and power boats would conflict with park policy.
6. Power boats would endanger swimmers and fishermen.
7. The development could have negative effects on the fishing industry of the enclave villages.

While these government departments have called attention to the negative impact of the proposed development on the ecology of the Park, as this list of concerns demonstrates, the potential social impacts of the complex have received less attention. Little concern has been shown for how the lives of the villagers would be transformed by the project. Many residents who now manage their own agriculture, fishing, and business activities would lose their resource base to the hotel and would find themselves recast into wage employees of a joint Malawian-transnational corporate enterprise.

Chembe Village in particular, which houses half of the resident population of the park, would be the most affected by the development. In all likelihood, it would be demolished to make way for the golf course. WWF has begun training youth from this village as tour guides so that they can benefit more directly from the Park. Staff of WWF believe that Chembe would be better served by the construction of a small hotel. Such a facility would provide community members with a more diversified way of earning a living as they could add tourism to their existing fishing and agricultural activities.

In any case, a hotel with the pretensions of the one proposed by the Malawi Development Corporation is not likely to tolerate a fishing village located next door, even if the golf course which would displace the village were not built. When Tembo was asked about the promise made that the villagers would not be forced to move, he is reported to have responded that the agreement was merely a technicality.

Initially, Tembo brushed aside a call for an environmental impact assessment (EIA) of the project. Then he suggested that it be carried out by the relevant Departments in the Malawi government. Others argued that an outside assessment was necessary to assure objectivity. According to one actor, the World Bank and WWF have agreed to at least partially fund such an external assessment. However, Tembo continued to insist that the EIA be done by the relevant Malawian ministries. The pro- and anti-hotel discussions appear to have ended because of the wider political and economic crises in Malawi. Donor organizations, in particular The World Bank's Global Environmental Facilities Program in Malawi and WWF, appear to have succeeded in convincing the GOM not to go ahead with the proposed large-scale hotel development. While, for the time being, efforts to protect the ecology of the park appear to have succeeded, the wider conflicts between tourist development and fishing communities have not been addressed.

The processes involved in the proposed Lake Malawi National Park development scheme are similar to those that took place between Mdulumanja and the Livingstonia Beach Hotel. In both cases, advice from the relevant government ministries has been ignored or negated and the social consequences of the proposed development plans are inadequately considered.

However, there are at least two differences between the Lake Malawi National Park and the Mdulumanja cases. First, the proposed hotel development in the park threatened to significantly alter the ecology whereas the expansion of the Livingstonia Beach Hotel would not have the same effect. Second, the presence of major donor organizations have given the threats to the Park's ecology much higher visibility. Those ministries and departments that questioned the project were able to engage donor organizations to pressure the Malawi Government to halt construction of the large-scale facility.

Chinteche

In the mid-1970s, along the lakeshore between Bandawe and Chinteche in northern Malawi, a number of villages were forced by the government to relocate. In contrast to the other two case studies which involved dislocations to make way for hotel development, these displacements resulted from planned industrial development. During the 1950s, the British had cut down a large area of indigenous forest on the Viphya Plateau to plant a pine tree plantation for the manufacture of paper. Although colonialism ended prior to the completion of the project, the new government of Malawi sought to have the undertaking completed by constructing a paper mill at the base of the plateau.

In the early 1970s, it appeared that the GOM had successfully negotiated an agreement for the construction of the mill, and an extensive area of the lakeshore between Bandawe and Chinteche was designated as the site for the planned pulp mill. In anticipation of the proposed development, the GOM relocated the resident villages from the lakeshore to the base of the escarpment. The forced move resulted in considerable social and economic disruption. Little compensation was paid to those compelled to relocate. Headmen and chiefs were transferred to villages belonging to other headmen and chiefs, and relatives were scattered. Reportedly, many elderly people died as a consequence of the move. Even though the paper mill was never constructed, people were not permitted to return to their homes and lands.

Two explanations have been advanced for why the mill was never built. One focuses on the size and scale of the proposed development and the other on the damage that a paper mill would cause to the lake's ecology. On the one hand, it was suggested that the mill's size would rapidly exceed the wood capacity of the Viphya Forest. On the other, Fisheries Department personnel emphasize that they played a key role in blocking the proposed development because of the damage it would have caused to the fish stocks and water quality.[13]

In the last 5 years, as a consequence of improvements in the lakeshore road, new development issues have arisen. Wealthy Malawians, Indians, and even South Africans, with the encouragement of some political officials, have taken out leases on lakeside land. While visiting his home in Chinteche recently, one colleague was astonished to find the District Commissioner touring the area with eight people who were being allocated

[13]During 1991, there was discussion about the possible construction of a smaller mill which would make use of the now-aged Viphya pines. In the absence of access to the relevant documents we cannot assess the actual causes for the original project's demise, nor can we assess the likelihood of the new project going forward.

cottage sites. As a result of these practices, a large amount of land has been alienated from customary authority. A crisis has developed because villagers displaced by the proposed pulp mill are now petitioning to have their land restored to them.

In response, the Office of Land Evaluation (located in the Office of the President and Cabinet) has put a hold on cottage development, and has begun to develop a new lakeshore development plan for the area. It appears that some people who have received property may have it taken away. Essentially, the plan calls for cottages to be interspersed with villages along the lakeshore, thus providing fishers with some guaranteed access to the beach. The plan, however, has not yet been approved.

To summarize, in the Chinteche case, many villagers lost their lands and access to the lake as a result of the proposed construction of a paper mill. Since the time of their eviction in the mid-1970s, these villagers have not been permitted to return to their homes even though the project was never implemented. Although for many years they wrote letters to President Banda describing their plight, it is only now in the current more open political climate that they have gained some possibilities for redress.

At the same time, however, their voice is being heard in a changed context. Lakeshore land is now far more valuable than it was when they were originally evicted. Indeed, the proposed hotel development for the Lake Malawi National Park described above may ultimately affect the possibilities for redress. Some opponents of the construction of the large hotel complex in the Park have proposed that it be built instead at Chinteche. This area is portrayed as well-suited for tourist development because of its great beauty and absence of tourist facilities. Even if the hotel proposed for the Lake Malawi National Park is not moved to Chinteche, substantial tourist development is likely to take place in the area. For example, the owner of the Livingstonia Beach Hotel, among others, has petitioned to buy the small government-owned inn at Chinteche and turn it into a major hotel.

CONCLUSION

In this article, we have used a political ecology framework to examine how economic development strategies coupled with expressions of political power by the state have violated, or have the potential to violate, fishing communities' rights and alter their environment in three communities along the lakeshore.

The impacts on the environment differ in the three cases. The proposed hotel development in Lake Malawi National Park would dramatically alter the fragile ecology. At Mdulumanja and Chinteche, in contrast, proposed hotel and cottage development will have more subtle impacts on the environment but, as is the case in the park, will have pronounced social and cultural ramifications. Little consideration has been given to the fate of fishing communities who lose access to the lake and their lands. Perhaps unintentionally, the recently funded World Bank Malawi Fisheries Development Project may facilitate the process of displacement of fishing communities by tourist facilities. It may do so by increasing the capacity of semi-commercial and commercial fisheries to harvest and market more fish at the expense of the small-scale producers, processors, and traders who now account for the vast majority of the fish supply.[14]

Underlying the three cases described are differing views of how nature is to be appropriated. Hotel and cottage developers, and their advocates in the government, envision the lake as an arena of entertainment and beauty far removed from the daily livelihoods of fishing communities. The physical appropriation of the environment by these actors is thus accompanied by a powerful ideological appropriation as well. Fishing communities in contrast, while recognizing the beauty and power of the lake, view it primarily as a source of food and income which, under current economic circumstances, is irreplaceable.

What is occurring along the lakeshore in Malawi unfortunately is not unusual. The contestation over control of natural resources is global. User/producer communities which depend for their livelihoods upon local resources are typically disadvantaged in struggles with the state and large private interests. These struggles are often insidious, take place over many years, and they are usually not considered in the context of human rights violations. Despite the repressiveness of the state apparatus, villages in the three Malawian cases have found some room to maneuver, although not always successfully. In one instance, Chembe, donor organizations have provided a potent leverage point. In the other, Chinteche, although the communities were forced to relocate almost two decades ago, processes of democratic reform now may provide some opening to reclaim land and beach sites. In the case of Mdulumanja, however, while the villages were initially successful in fending off the hotel, they ultimately were defeated and forced to relocate.

[14]In fact, the way development assistance to the lakeshore is currently being conceptualized by the World Bank separates development and environment into different spheres of activity. The aim of the Malawi Fisheries Development Project is to improve the capacity of the Fisheries Department to monitor and regulate the fishing industry and if possible, to increase fish production. The World Bank funded Global Environmental Facilities Program for Malawi, on the other hand, addresses issues of species diversity, upgrading of the national parks, and environmental education. For a more detailed consideration of the Malawi Fisheries Development Project see Ferguson, Derman, and Mkandawire (1993).

As the process of democratization deepens in Malawi, spurred in part by community actions like the ones described here and in part by pressures from western governments and interests, it is uncertain whether it will be accompanied by a critical reappraisal of development strategies. A genuine reappraisal of lakeshore development plans requires rethinking the scale of the proposed development activities and the nature of community participation and democratization within them. On both these counts, donor organizations may be part of the problem rather than the solution. Despite their rhetoric, some do not support grassroots movements which are attempting to gain increased control over natural resource management. All too often, democratization is considered to refer only to the activities of national-level political parties and not to movements toward sustainable livelihood. Without a reconceptualization and broadening of the concept and its organizational correlates, it is likely that entrenched economic structures which degrade the environment and undermine the well-being of fishing communities will remain in place.

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